

Balram Mishra v. State of U.P. and Others

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 19 July 2024 · 2024:AHC-LKO:48895-DB · WRIT - C No. 6037 of 2024 · **Writ disposed; apply under clause 6.14 for consideration**

HEADNOTE

A tenant's writ for a fresh electricity connection, pending since 17 August 2022, was disposed of without directing release of supply. He was directed to apply within a week to respondent no. 2 under paragraph 6.14 of the Electricity Supply Code, 2005 for the instalment facility in respect of premises dues; if so applied, respondent no. 2 shall consider the application sympathetically and pass an appropriate order within two weeks.

FACTUAL SUMMARY

Balram Mishra, a tenant, petitioned the Lucknow Bench for a mandamus directing a fresh electricity connection in his name, an application pending since 17 August 2022. On 12 July 2024 the Court granted the distribution licensee a week to take instructions and listed the matter afresh. On 19 July 2024 counsel for the licensee stated that dues remained on the premises and that a new connection could not be released until those dues were cleared, while an instalment facility under the Supply Code could be sought from the Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment application before a fresh connection

HOLDING

The writ for a fresh connection was disposed of by directing the petitioner to apply within one week to respondent no. 2. If the application is made under paragraph 6.14 of the Electricity Supply Code, 2005, respondent no. 2 shall consider it sympathetically and pass an appropriate order within two weeks. The Court did not direct release of the connection. ¶ 19.07.2024

PRINCIPLE TAGS

installment-payment-clause-6.14 A tenant seeking a fresh connection, told that premises dues had to be cleared first, was directed to apply to the Executive Engineer under paragraph 6.14 for the instalment facility, the licensee to consider that application sympathetically. ¶ 19.07.2024

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE FRESH CONNECTION MUST BE RELEASED, AND WHETHER INSTALMENTS UNDER PARAGRAPH 6.14 SHOULD BE ALLOWED

Left to respondent no. 2 to consider the application and pass an appropriate order. ¶ 19.07.2024